

“Freedom Fun USA Waco/Temple/Killeen”

Acknowledgement of Risks, Assumption of Risks & Responsibility, and Release of Liability for Organizations and Individuals

Warning: There are elements of risk in any adventure, sports or activity associated with the indoor or outdoor use of Freedom Fun Waco/Temple/Killeen games & rental equipment and activities incidental thereto (“referred to herein as activity”). Although we have taken reasonable steps to provide you with appropriate equipment and/or skilled staff, this activity is not without risk. Certain risks cannot be eliminated without destroying the unique character of the activity. For your safety, and that of other participants, we think it is important for you to know in advance what to expect and to be informed of the inherent risks.

Acknowledgement of Risks: I acknowledge that the following describes some, BUT NOT ALL, of those risk(s) of personal injury, accidents and/or illness, including but not limited to sprains, torn muscles and/or ligaments, fractured or broken bones, eye damage, cuts, wounds, scrapes, abrasions and/or contusions, dehydration, oxygen shortage (anoxia), and/or exposure, head, neck, and/or spine injuries, allergic reaction, shock paralysis or death. I/We understand the description of these risks is not complete and that unknown or unanticipated risks may result in injury, illness or death.

Express Assumption of Risk and Responsibility: I/We agree to assume responsibility for the risks identified herein and those risks not specifically identified. My/our participation in these activities is purely voluntary. No one is forcing me/us to participate. I verify that I am physically fit, not under the influence of alcohol or drugs at this time, and sufficiently qualified, trained and capable to participate in these activities. Therefore, I assume full responsibility for myself/organization I present, including any minor children, for which I am responsible for bodily injury, accidents, illness, death, loss of personal property, and expenses thereof as a result of any accident which may occur. I/We elect to participate in spite of the risks.

Authorization: I/We hereby authorize any medical treatment deemed necessary in the event of any injury while participating in the activity. I/We either have appropriate insurance or in its absence agree to pay all costs of rescue and/or medical services as may be incurred on my/our (organization’s) behalf. I/We agree to any film or photographs of me/us as a participant becomes your property and may be used for promotional purposes.

Release of Liability: I hereby release, discharge, and covenant not to sue Freedom Fun USA Waco/Temple/Killeen, its respective administrators, directors, agents, officers, volunteers, and employees, other participants, any sponsors, advertisers, and in applicable, owners and lessors or premises on which the activity takes place, (each considered one of the “RELEASES” herein) from all liability, claims, demands, losses, or damages on my account caused or alleged to be caused in whole or in part by the negligence or the “releases” or otherwise, included negligent rescue operations; I further agree that if, despite this release, waiver or liability, and assumption of risk I, or anyone on my behalf, makes a claim against any of the RELEASES, I will

indemnify, save, and hold harmless each of the RELEASES from any loss, liability, damage, or cost which any may incur as the result of such claim.

PARENT CONSENT

I, the minor's parent and /or legal guardian, understand the nature of the above referenced activities and the minor's experience and capabilities and believe the minor to be qualified to participate in such activity. I hereby release, discharge, covenant not to sue and AGREE TO INDEMNITY AND SAVE AND HOLD HARMLESS each of the RELEASES from all liability, claims, demands, losses, or damages on the minor's account caused or alleged to have been caused in whole or in part by the negligence of the RELEASES or otherwise, including negligent rescue operations, and further agree that if, despite this release, I, the minor, or anyone on the minor's behalf makes a claim against any of the above RELEASES, I WILL INDEMNITY, SAVE AND HOLD HARMLESS each of the RELEASES from any litigation expenses, attorney fees, loss liability, damage, or cost any RELEASES many incur as the result of any such claim.

Freedom Fun Waco/Temple/Killeen Release Signatures

I have read the Warning, Acknowledgement Risks, Assumption of Risk & Responsibility, Authorization, Release of Liability & Parent Consent. I understand that by signing this document I MAY BE WAIVING LEGAL RIGHTS and have signed freely and without inducement.

I have read the Acknowledgement Risks, Assumption of Risk and Responsibility and Release of Liability. I understand that by signing this document I MAY BE WAIVING LEGAL RIGHTS.

Name of Individual: _____

Contact Phone: _____

Email Address: _____

Event Date: 12/2/2023

Authorized Representative (Printed) : _____

Authorized Representative (Signature): _____

Date: 12/2/2023